kw MOVE
KELLERWILLIAMS

TERMS OF BUSINESS



PLEASE READ THESE TERMS CAREFULLY.

1. THESE TERMS

1.1. **What these terms cover**. Unless otherwise agreed in writing, these are the Terms of Business ("terms") on which we supply our Let Only, Rent Collection or Managed Service ("**Services**") to you.

1.2. These terms apply to the properties that you engage us to provide Services to you for.

1.3. These terms form the entire agreement between you and us.

2. WHO WE ARE AND WHO YOU ARE

2.1. We are KW Move, a trading name of Move Lettings Limited. We operate via a limited company, Move Lettings Limited registered in England and Wales. Our Company Registration number is 11749778 and our registered office is at 85 Great Portland Street, First Floor, London, England, W1W 7LT. We are contracted by Agents who engage us as subcontractors for some of the services they have offered you. We are authorised to act on behalf of the Agent.

2.2. You can contact us by phoning us on 0208 106 7434 or emailing us at enquiries@kwmove.co.uk

2.3. **How we may contact you**. If we have to contact you we will do so by phone or by writing to you at the email address provided on the Platform (defined below) when you instructed us.

2.4. "**Writing**" includes emails. When we use the words "writing" or "written" in these terms, this includes e-mail.

2.5. "**You**" are a landlord of a property. This means that you own an interest in the property, whether freehold or leasehold. This includes third parties who are authorized by you and are acting on your behalf.

2.6. **Identity and Ownership checks** You agree to provide us with your identification documents. You will provide us with original copies of identity documentation and authorise us to carry out online identity checks and documentation as proof of ownership.

2.7 "**Platform**" is our online secure portal for landlord and tenants.

2.8 "**Agent**" is the individual or company engaged to act as your agent in marketing the property.

3. OUR AGREEMENT WITH YOU

3.1. These terms apply to instructions for Service(s) placed on the Platform or where we receive confirmation from the Agent.

3.2. Each set of instructions from you to us shall be an offer by you to procure the Service(s) and these terms shall apply.

3.3. **Appointment**. By signing and submitting the confirmation of instruction form to us, you:

3.3.1. are the sole or joint owner of the Property and have the right to let the property under the terms of the mortgage or headlease. You understand that we are appointed on behalf of the Agent to collect commissions, Fees and other charges for such service(s) as set out in clause 5;

3.3.2. are authorising us to provide the Service(s) set out on the Platform;

3.3.3. acknowledge that commission, interest or other income earned by us while delivering the Service(s) provided under this Agreement, less any Fees due to the Agent, will be retained by us; and

3.3.4. authorise us to negotiate and sign or otherwise conclude tenancies on a tenancy agreement in your name, without prior reference to you.

3.3.5. agree that we may engage a third party to carry out procedures necessary for the performance of Services. You agree that whilst we will take reasonable steps to ensure that third parties are competent and qualified, we cannot be liable for any loss or damage that you may suffer through the act or any default or negligence of any third party.

3.4. Sole Agency. If you have elected to instruct the Agent on a sole agency basis you agree that they will be the only Agent instructed to market and let your property for the agreed period. If you instruct another Agent during such period, we reserve the right to charge the amount set out in clause 5.3.1 and you agree to pay such charge.

3.5. If you have not elected to instruct the Agent on a sole agency basis, or if the sole agency period has expired, you agree to a multi agent basis appointment.

3.6. Our acceptance of your instructions will take place when you accept these terms and conditions, at which point an Agreement will come into existence between you and us (the “Commencement Date”).

3.7. These terms apply to all of our Services and any variation to these terms and any statements made by us or our employees about the service(s) shall not be binding on us unless agreed in writing and authorised by a director of KW Move.

3.8 Where more than one person forms the landlord for the purposes of this Agreement, joint and several liability will apply to all Fees and additional charges under this Agreement.

4. OUR SERVICES

4.1. We provide the following Services:

4.1.1. **Let Only Service.** This is where you engage the Agent to let a property on your behalf. Clauses 1 to 13 and clauses 18 to 23 of these terms apply to your instructions for this service.

4.1.2. **Managed Service.** This is where you engage the Agent to carry an end to end fully managed service on your behalf in respect of rental of a Property. Clauses 1 to 15 and clauses 18 to 23 of these

terms apply to your instructions for this Service. For details of what is included in the Management Service, and the applicable fee, please visit the Platform.

4.1.3. **Rent Collection Service**. This is where you engage the Agent to collect rent from a tenant on your behalf. Clauses 1 to 14 and clauses 18 to 23 of these terms apply to your instructions for this service. For details of what is included in the Rent Collection Service, please visit the Platform.

4.2. In addition to the above services, we can also provide additional services which are not included in the above service(s) or the applicable service fee(s). Details of the additional service(s) which we can provide, and the associated charges are set out in clause 5.3 below.

5. FEES AND ADDITIONAL CHARGES

5.1. You agree to pay all sums due under this Agreement to us for providing the Services ("**Fees**"). You agree that any commission, interest or other income due to the Agent will be received by us while delivering the Service(s) provided under this Agreement (e.g. referrals to solicitors, interest on funds held and collected, fees from EPC providers, contractors or inventory clerks) will be retained by us.

5.2. The Fees for the service(s) are stated on the Platform. By agreeing to these terms, you agree to pay:

5.2.1. the Fees for the Service(s) as outlined on the Platform; and

5.2.2. any applicable Additional Charges, which are set out in clauses 5.3 and 5.4 below.

5.3. **Additional Charges** The following additional charges will be payable by either bank transfer or as a deduction from rent received, if you:

5.3.1. instruct another agent during the period of instruction on a sole agency basis such other agent negotiates and arranges a tenancy for the property, you agree to pay an administration charge of £360 including VAT as a contribution towards the administration and marketing costs incurred by us.

5.3.2. withdraw from entering into a tenancy after instructing us to proceed you agree to pay an administration charge equivalent to one month's rent as a contribution towards the administration and marketing costs incurred by us.

5.3.3. sell the property with the tenant in occupation you will remain liable for all Rent Collection fees and Management fees agreed for the period of the tenancy.

5.3.4. would like paper copies of statements of account, these can be provided, and you agree to pay a fixed charge of £3 incl. VAT per month.

5.3.5. are a UK taxpayer not resident in the UK and do not have an approval number (the approval number shown on a notice of approval to receive rent with no tax deducted issued by His Majesty's Revenue and Customs ("HMRC") under the Non-Resident Landlords Scheme) you agree to pay a fixed charge of £72 incl. VAT each quarter for tax retention and completion of the documentation required by HMRC.

5.3.6. are a UK taxpayer not resident in the UK we will charge, and you agree to pay a fixed charge of £60 incl. VAT for the provision of the required gross annual income and expenditure statement to HMRC.

5.3.7. take our Management or Rent Collection Service, we will produce and send to you a statement showing gross income and expenditure for the year and you agree to pay a fixed charge of £99 incl. VAT.

5.3.8. require us to undertake negotiations concerning deductions from the deposit/flatbond, you agree to pay a fixed charge of £360 incl. VAT payable in advance (unless a Full Management Service is being provided – in which case this is included within the fee).

5.3.9. require our attendance at Court or any Tribunal including our assistance in preparing any documentation this can be provided. Price is dependant on location and can be provided upon request.

5.3.10. require us to serve Section 8 or Section 21 Notices, you agree to pay a fixed charge of £240 incl. VAT payable in advance (unless a Management Service is being provided – in which case this is included within the fee).

5.3.11. we will arrange two visits to the property per year on a Managed service only. You agree to pay a fixed charge of £72 incl. VAT per visit and for any additional visits required.

5.3.12. require us to wait at a property, for a contractor appointed by you, this can be provided and you agree to pay a reasonable charge if so required.

5.3.13. instruct us in writing to undertake partial or total furnishing or refurbishment of the property, this will incur and you agree to pay a fixed charge of 12% incl. VAT of the total cost of furnishing or refurbishment of the property.

5.3.14. require key cutting, this can be provided, and you agree to pay the appropriate cost per key plus a fixed charge of £30 incl. VAT.

5.3.15. require us to make payment of your rent or other payments into a bank account held outside of the United Kingdom, this can be arranged, and you agree to pay a fixed fee of £50 incl. VAT per payment made.

5.3.16. instruct us to complete an application to the relevant local authority for a Selective, Additional or House of Multiple Occupancy Licence in respect of the property, you agree to pay a fee of £240 incl. VAT for the completion of the application. We will inform you when any fee is payable to the local authority in respect of the application and you agree to either pay such fee to us on account or pay the fee directly to the local authority.

5.3.17. require us to provide a letter to your Mortgage Provider confirming the agreed details of the tenancy at your property, this can be provided and you agree to pay a fixed charge of £60 incl. VAT.

5.3.18. do not provide us with a valid Gas Safety Certificate prior to the commencement of the tenancy and we arrange a Gas Safe registered engineer to conduct an inspection, you agree to pay for the costs of the inspection.

5.3.19. (i) extend the existing tenancy, (ii) agree the terms for the grant of a new tenancy to the existing tenant, the Extension Set Up fee (£240 incl VAT) will become payable by you.

5.3.20. require us to serve a Section 13 Notice to increase the rent on a periodic tenancy, you agree to pay a fixed charge of £120 incl VAT.

5.3.21. terminate the Agreement after the 14 day cancellation period has expired and following your acceptance of an offer from a proposed tenant of the property (but prior to grant of the tenancy), you agree to pay a charge equivalent to two month's rent + VAT (provided that we are not in breach of the Agreement).

5.3.22. terminate the Agreement following a successful letting of the property by us and the existing tenants remain in the property under either a statutory periodic tenancy or enters into a new fixed term tenancy agreement directly with you, you agree to pay a fixed charge equivalent to two months' rent + VAT (provided that we are not in breach of the Agreement).

5.3.23. terminate the Agreement following a successful letting of the property, it is your responsibility to ensure that any future rental payments are directed to your new agent or yourself. If a rental payment

is made to us and you require us to pass that payment to you, this can be arranged, and you agree to pay a fixed charge of £60 incl. VAT per payment made.

5.4. If you instruct us to provide the Let Only Service, and at the date of termination, have not made payment of the fee agreed in full, you agree to pay the balance of the Letting Service fee before the service can be terminated.

5.5. If you miss an appointment where we have attended at the property on your instruction and where the appointment gets cancelled or changed, you agree to pay an Administration Fee of £60 incl. VAT.

5.6. **VAT** Unless stated otherwise all fees and additional charges are inclusive of VAT which will be charged at the prevailing rate. Our VAT registration number is 315486400.

5.7. We will apply changes in the rate of VAT. If the rate of VAT changes between your instructions and the date we supply the service(s) and/or additional service(s), we will adjust the rate of VAT that you pay, unless you have already paid for the service(s) and any additional service(s) in full before the change in the rate of VAT takes effect.

6. YOUR RIGHT TO MAKE CHANGES TO YOUR INSTRUCTIONS

6.1. If you wish to make a change to the Service(s) you have requested, please contact us. We will let you know if the change is possible.

7. OUR RIGHTS TO MAKE CHANGES

7.1. We may make changes to our Service(s) and these Terms of Business to reflect changes in relevant laws and regulatory requirements, and to implement minor technical adjustments, improvements and reasonable increases in fees.

If we intend to make significant changes to these terms, we will notify you beforehand and you may then contact us to end the Agreement before the changes take effect.

8. PROVISION OF THE SERVICES

8.1. We will begin providing the service(s) immediately, on the Commencement Date.

8.2. If our supply of the service(s) is delayed by an event outside our control, then we will contact you as soon as possible to let you know and we will take steps to minimise the effect of the delay. Provided we do this we will not be liable for delays caused by the event, but if there is a risk of substantial delay you may contact us to end the Agreement and receive a refund for any service(s) you have paid for but not received.

8.3. If the nature of the services require that we have access to the property or any other location, you shall ensure that we have access to the property at the times to be agreed between us. If you do not allow us access to the property to perform the service(s) as arranged, for example by not providing us with keys to the property we may charge you additional costs incurred by us as a result. If, despite our reasonable efforts, we are unable to contact you or re-arrange access to the property we may end the Agreement and clause 11.2 will apply.

8.4. You will use all reasonable endeavours to provide all pertinent information to us that is necessary for us to provide the services to you. We will contact you to ask for this information. If you do not give us this information within a reasonable time of us asking for it, or if you give us incomplete or incorrect information, we may either end the Agreement (and clause 11.2 will apply) or make an additional charge of a reasonable sum to compensate us for any extra work that is required as a result. Any delay in the provision of the Services resulting in your failure or delay in providing information shall not be our responsibility or fault.

8.5. We reserve the right to suspend the Service(s) if you do not pay. If you do not pay us for the Service(s) or the additional service(s) when you are supposed to (see clause 12) and you still do not make payment within 14 days of us reminding you that payment is due, we may suspend supply of the service(s) until you have paid us the outstanding amounts. We will contact you to tell you we are suspending supply of the service(s). We will not charge you for the service(s) during the period for which they are suspended.

9. YOUR RIGHTS TO END THE AGREEMENT

9.1. Ending the Agreement because of something we have done or are going to do. If you are ending the Agreement for a reason set out at clauses 9.1.1 to 9.1.3 below you remain liable to pay for services already delivered, the Agreement will end immediately and we will refund you in full for any service(s) which have not been provided. The reasons are:

9.1.1. we have told you about an error in the price or description of the service(s) and you do not wish to proceed;

9.1.2. there is a risk that supply of the service(s) may be significantly delayed because of events outside our control;

9.1.3. you have a legal right to end the Agreement because of something we have done wrong.

9.2. Your right to change your mind. If you change your mind, you are able to exercise your statutory cooling off right. This cancellation period will expire 14 days from the Commencement Date.

9.3. Ending the Agreement where we are not in breach of the Agreement and there is no longer a right to change your mind. Even if we are not in breach of the Agreement and you do not have a right to change your mind (because the 14 day cancellation period has expired), you can still end the Agreement before it is completed. An Agreement for services is completed when we have finished providing the service(s) and you have paid for them. If you wish to end the Agreement before it is completed and we are not in significant breach of the Agreement, just contact us to let us know (see clause 10).

10. HOW TO END THE AGREEMENT WITH US

10.1. Tell us you want to end the Agreement. To end the Agreement with us, please write to us by email. Please provide your name, address, details of the property and, where available, your phone number and email address. You will remain liable for outstanding charges.

10.2. The Agreement will end 60 days after you have provided us with written confirmation that you wish it to end.

10.3. Deductions from refunds if you are ending the Agreement because of something we have done or are going to do. If you are ending the Agreement for a reason set out in clauses 9.1.1 to 9.1.3 above, we reserve the right to charge you for the reasonable costs of our service(s) up to the date of the

Agreement ending and may deduct this amount from any refund. The amount of any such charge will be proportionate to what has been supplied to you.

10.4. Permitted Deductions from refunds if you are exercising your right to change your mind. If you are exercising your right to change your mind (within 14 days of the Commencement Date) please let us know as soon as possible.

10.5. If you let us know that you want to end the Agreement, after the 14 day cancellation period has expired and before we have been able to complete the Agreement, you agree to pay and we will deduct from any refund (or, if you have not made an advance payment, charge you) the charges set out in clauses 5.3.20 and 5.3.21.

10.6. If, after the 14 day cancellation period has expired, you let us know that you want to end the Agreement we will deduct from any refund (or, if you have not made an advance payment, charge you) the charge set out in clause 5.4.

10.7. We will reimburse all payments received from you. We will make the reimbursement within l4 days after the 60th day on which we are informed about your decision to cancel the Agreement. We will make the reimbursement using BACS transfer to your nominated bank or building society. If you requested that we begin the performance of Service(s) during the cancellation period, you shall pay us an amount which is in proportion to what has been performed until you have communicated to us your cancellation from this Agreement, as described above.

10.8. We will make any refunds due to you without undue delay. If you are exercising your right to change your mind then your refund will be made not later than 14 days after the day on which you inform us about your decision to cancel this Agreement.

11. OUR RIGHTS TO END THE AGREEMENT

11.1. We may end the Agreement for Service at any time and will confirm this by writing to you if:

11.1.1. you do not make any payment to us when it is due, and you still do not make payment within 14 days of us reminding you that payment is due;

11.1.2. you do not provide us with information that is necessary for us to provide the service in a reasonable time;

11.1.3. you do not, within a reasonable time, allow us access to the property to supply the Service;

11.1.4. instruct another Agent during the Agent's sole agency period and such other Agent negotiates and arranges a tenancy of the property;

11.1.5. you do not comply with your obligations, as set out in these terms, or your legal obligations, as set out in clause 19 below; or

11.1.6. sell the property with the tenant in occupation.

11.2. If you breach the Agreement. If we end the Agreement in any of the situations set out in clause 11.1 we agree to refund any money you have paid in advance for Services we have not provided but we may deduct or charge you a fee (clause 5.3), or deduct or charge you for the net costs we will incur as a result of you breaking the Agreement.

11.3. We may withdraw the Service(s). We may write to you to let you know that we are going to stop providing the service(s). We will let you know at least 60 days in advance of our stopping the supply of the service(s) and will refund any sums you have paid in advance for services which will not have been provided at the date of termination.

12. PAYMENT OF FEES AND CHARGES

12.1. We accept payment by BACS transfer. Details of when the fees are payable and bank details are available on the Platform.

12.2. Additional Charges are either payable in advance BACS transfer or deducted from the rental payments collected by us and payable to you. We will account to you for the rent received and the payments deducted for Additional Charges and any other expenditure carried out by us on your behalf.

13. TERMS APPLICABLE TO ALL SERVICES

This clause 13 applies, to all Service(s)(Let Only, Rent Collection and Managed).

13.1. **"The Tenancy"** means all tenancies granted whether on a fixed term, periodic or assured tenancy basis based on our standard forms of agreement.

If the tenant is an individual and the agreed rent is £100,000 per year or less, KW Move will use a tenancy agreement in line with the type of tenancy required. The tenancy agreement will not include a "break clause" unless specifically requested by you or the tenant. You are required to email us with confirmation that a break clause is required and provide us with proof that the tenant consents, where relevant.

You are able to elect your own agreement for the Tenancy. Where you elect your own agreement for the Tenancy or make any changes to our standard forms of agreement, you acknowledge and agree that you do so entirely at your own risk.

Special clauses can be added to the tenancy agreement which should be made in writing by email. These may relate to the allowance of pets or smoking at the property. All special clauses must be agreed by all parties prior to signing the tenancy agreement.

13.2. **Authorisation to sign** By entering into this Agreement, you provide your authority for KW Move to execute or sign the tenancy or any extension to the tenancy agreement on your behalf. If you do not authorise us to sign on your behalf, you will notify us of this in writing and prior to the commencement of the tenancy.

13.3. **Inventory / Schedule of Condition / Formal Check-Out**. We recommend that an inventory and schedule of condition is obtained prior to the grant of a tenancy and that a formal check- out is carried out at the end of any tenancy. The preparation of an inventory or schedule of condition or the carrying out of a formal check-out are not included within the Service(s) that we provide. We cannot accept responsibility for any losses resulting from your failure to arrange any inventory/ schedule of condition and/or formal check-out prior to the grant of a tenancy.

13.4. Where instructed to do so, we will arrange for an inventory/schedule of condition to be carried out at the beginning of the tenancy. In these instances, we will automatically arrange for a formal check-out to be carried out at the end of the tenancy. You are responsible for the payment of any Fees relating to the preparation or carrying out of an inventory or schedule of condition requested by you and the subsequent formal check-out. You agree that we may use an independent company of our choice to provide this service to you. You accept that we cannot be responsible for any latent or hidden defects.

13.5. **General**. Prior to the start of the tenancy, we will ask you if you require the tenant to pay a deposit or accept a Flatbond from Flatfair Limited (13.7.), depending on the tenant's choice.

13.6. **Deposits** – General. Prior to the start of a tenancy, we will ask you how you wish any deposit paid by the tenant to be held.

The deposit may either be held by us or you but must be held in accordance with the terms of the Housing Act 2004. Deposits held by us will be held under the Tenancy Deposit Scheme ("TDS") operated by the Dispute Service Limited. The tenancy agreement will reflect your choice.

We will collect the tenant's deposit with the first month's rent on or before the tenancy start date. For the Let Only service, the deposit will be held and registered with an approved scheme where required or requested by you. We will not automatically re-serve prescribed information in the event that the contract becomes a statutory periodic tenancy. You are required to instruct us should a periodic tenancy or tenancy renewal take place. Failure to serve prescribed information to the tenant may withdraw your ability to serve a section 21 notice.

13.6.1. **Standard AST deposits** – held by us. We will hold the deposit as stakeholder and in accordance with the TDS. Full details of the TDS are available at www.thedisputeservice.co.uk.

13.6.2. **Standard AST deposits** - held by you. If you wish to hold the deposit, we will only arrange for the deposit to be transferred to you if and when you (a) confirm to us the identity of the tenancy deposit protection scheme in which the deposit will be held and (b) provide us with proof of your membership of such scheme and (c) Proof that the appropriate prescribed information notice has been served on and signed by the tenants and you. If you hold the deposit you will reimburse us against any losses/ expenses resulting directly or indirectly from claims by the tenant which arise as a result of your failure to comply with the relevant legal obligations.

Flatbond Deposit Replacement Scheme

13.7 **Flatbond** – Prior to the start of a tenancy. You understand and agree that we will provide your name and contact details to Flatfair Limited ("Flatfair"). Flatair provide deposit-replacement services (www.flatfair.co.uk). Details of Flatfair are further set out in Flatfair's Membership Terms and Flatfair's Landlord Terms and Conditions. You agree that we can provide your details to Flatfair explicitly for the purpose of:

13.7.1 Registering an account with Flatfair and creation of a Flatbond; and

13.7.2 Administering the Flatbond in line with Flatfair's terms & conditions

13.8. **Expiration of Tenancies.** We will endeavour to contact you prior to the expiry of the tenancy and seek your instructions as to whether you wish to:

13.8.1. terminate the tenancy on expiry;

13.9.2. extend the existing tenancy; or

13.9.3. grant a new tenancy to the existing tenant (and if so, on what terms).

If you decide to extend the existing tenancy or agree the terms for the grant of a new tenancy to the existing tenant, we shall prepare and execute the necessary tenancy agreement on your behalf and arrange for the tenant to execute the necessary tenancy agreement, subject to the charge for this service set out in clause 5.3.19 being paid by you. You shall have 28 days following expiry or termination of a tenancy to instruct us if you wish to submit a charge to the tenant: and

Managed Service: We shall liaise with you and the tenant to seek agreement on any changes you request to be made to the tenant through Flatfair: or

If we are not managing the tenancy: you must negotiate charges with the tenant direct through Flatfair and notify us of the changes agreed between you and the tenant to enable payments to be made through Flatfair.

13.9 Deposits – On expiry or termination of the tenancy.

13.9.1 **Deposit negotiations.** Where a deposit is held by us and you have contracted to purchase our Management Service in respect of the property, we will undertake any negotiations on your behalf in respect of the deposit. Where a deposit is held by us and you have not contracted to purchase our Management Service in respect of the property, we will only undertake any deposit negotiations on your behalf if you give us written instructions to do so, and subject to the charge for this service set out in clause 5.3.8 above being paid in advance by you.

13.9.2. If on expiry or termination of the tenancy there is no dispute between the tenant and you as to the proportion of the deposit to be returned to the tenant, we will, upon receiving written consent from both the tenant and you, refund or retain the deposit as instructed.

13.9.3. Where we are notified of or become aware of a dispute between the tenant and you regarding the deposit, and such dispute is not resolved, we will submit the dispute to the TDS for adjudication. In such circumstances we will:

13.9.3.1. co-operate with TDS in any adjudication or arbitration and will follow any recommendations made by TDS.

13.9.3.2. not accept any liability for any loss you might suffer as a result of your failure or delay in instructing us to make any refund of the deposit or to inform us of any dispute concerning the deposit.

13.10. **Flatbond** - on expiry or termination of the tenancy you have 28 days to instruct us whether you wish to close the Flatbond without making a charge to the tenant or submit a charge against the tenant in line with Flatfair's terms & conditions:

13.10.1. In case of agreement on a charge between you and the tenant, Flatfair will distribute any monies owed by the tenant to the landlord.

13.10.2. In case of disagreement on a charge between the parties, we or the tenant may choose at any point to instruct Flatfair to file the dispute with their chosen independent adjudicators. In such circumstances:

13.10.2.1 You will Co-operate with Flatfair on any adjudication and follow any recommendation made by their independent adjudicators.

13.10.2.2 We will not accept any liability for any loss you might suffer as a result of your failure to adhere to Flatfair time schedules, or for failing to provide sufficient evidence.

13.10.3. **Claim negotiation** –**Management Services**. We will undertake any claim negotiations on your behalf in respect of the Flatbond.

13.10.4 **Claim negotiation** – **Rent Collection and Let Only services.** We will only undertake any claim negotiations on your behalf in respect of the Flatbond if you give us written instructions to do so, and subject to the charge for this service as set out in clause 5.3.8 above being paid in advance by you.

13.11. **Utility management**. We are unable to accept responsibility for any utility service contract taken out by you or the tenant. Where you have instructed us to carry out an inventory or schedule of condition, the inventory clerk will endeavour to take meter readings at the start and end of each tenancy. It remains the responsibility of the incoming tenant to inform the utility companies of these readings and any change of occupation.

We do not guarantee that utility services will be transferred to the tenant's name and we accept no responsibility should services not be transferred. You acknowledge that the tenant is entitled to change the utility providers.

13.12 Oh, Goodlord Limited ("Goodlord") has been engaged by us to provide energy supply management services, council tax and water supply registration for your Property.

You hereby authorise us to use Goodlord to manage the energy supply during any void period for the

property. You acknowledge that this may result in a change to the electricity and/or gas supplier for the Property, but are aware that you will remain able to change to a different provider if desired.

You agree that we may pass your name and contact details to Goodlord for the purposes of managing the electricity and/or gas supply for the Property and completing registrations for council tax and water supply. Full details of how Goodlord process your information can be found at: https://www.goodlord.co/privacy-policy

Once the Tenant has taken possession of the property they can choose an appropriate supplier if they wish.

13.13 **Mail**. You should ensure that where required a mail re-direction service is arranged prior to the start of the tenancy. You acknowledge that we are not responsible for any missing or damaged mail.

13.14 **Internet/Phone/Television** We cannot accept any responsibility for a contract with internet providers and television/phone /internet connection taken by you or the tenant.

13.15 **Water** We cannot be liable for any loss or damage to water systems at the property as a result of cold weather. It is your responsibility to ensure that such risks are covered by insurance and adequate arrangements are made to protect water systems from damage.

13.16 **Parking Permits** It is your responsibility to provide parking permits at the start of the tenancy or extension of the tenancy where applicable.

13.17 **Communal Heating and Hot Water** It is your responsibility to provide us with details of any communal heating / hot water suppliers at the start of the tenancy or extension of the tenancy where applicable.

13.18. **Provision of your data to tenants.** You acknowledge that we may need to supply the tenant with contact details or other data, in order to fulfil our obligations under the Agreement. You consent to us supplying such data to the tenant for this purpose.

13.19 **Payment of Move In Monies**. We will make payment of any balance due to you by bank transfer to your nominated bank or building society within 3-5 working days of cleared funds being received into our client account and the move in date, whichever occurs later. For bank accounts not based within the United Kingdom, these time frames may be subject to variation. If payment is to be made to a bank account held outside of the United Kingdom, the service is subject to the charge set out in clause 5.3.15 being paid by you.

14. TERMS APPLICABLE TO MANAGED AND RENT COLLECTION SERVICES

This clause 14 only applies to Agreements for Managed Services and / or Rent Collection Services.

14.1. **Collection of rent**. We will collect rent from the tenant in accordance with the tenancy agreement. We will hold the rent in a designated client account.

14.2. **Payment of rental payments to you.** We will make payment of any balance due to you by bank transfer to your nominated bank or building society within 3-5 working days of cleared funds being received into our client account and the rental due date, whichever occurs later. For bank accounts not based within the United Kingdom, these time frames may be subject to variation. If payment is to be made to a bank account held outside of the United Kingdom, the service is subject to the charge set out in clause 5.3.15 being paid by you.

14.3. **Late Payments**. We are not responsible for any bank charges incurred by you as a result of delays in payment. You are advised to arrange a back-up bank facility to take account of rent payment dates, void periods or default by the tenant.

14.4. **How will we account to you.** We will account to you monthly, listing rent received, payments deducted for our fees, additional charges and any other expenditure carried out by us in a statement, which shall be emailed to you.

14.5. **Non- UK residents**. If you are a UK taxpayer but are not resident in the UK and do not have an approval number, we are required to deduct tax at basic rate from the rent and remit the tax withheld to HMRC quarterly until an approval number is obtained from HMRC. The charge payable for such service is shown at clause 5.3.5 above. Please note, if we fail to deduct tax, either through error or other circumstances, we reserve the right to recover this money from you at a later date

14.6. If you are a UK taxpayer and not resident in the UK. We will provide the required gross annual income and expenditure statement to HMRC. The charge payable for such service is shown at clause 5.3.6 above.

14.7. **Annual Statements.** We will provide you with an annual statement of gross income and expenditure relating to tenancies administered by us under this Agreement either within three months of 5th April (where you are a private individual or individuals) or upon request. The charge payable for the provision of such a statement is shown at clause 5.3.7 above.

14.8. **Failure by tenant to pay**. We are not responsible if the tenant fails to pay the contractual rent. You remain liable to us for our Fees regardless of whether the tenant fails to pay. If the tenant falls into arrears we will take such action on your behalf to recover rent arrears. Should it become necessary to take legal action and you wish to instruct solicitors, you will be responsible for instructing solicitors. You authorise us to supply to any solicitors instructed by you any information or copies of documentation held by us and requested by such solicitors. Any attendance at Court by us is subject to an administration charge shown at clause 5.3.9 above. We are not responsible for any bank charges from late or non-payment of rent by a tenant.

14.9. Service of Notices

14.9.1. When instructed to provide a Rent Collection Service we will serve any statutory Notice when expressly instructed in writing to do so, subject to the payment of the charge shown at clause 5.3.10 above.

14.9.2. When instructed to provide a Management Service we will serve any statutory Notice when expressly instructed in writing to do so.

14.9.3. We do not accept any liability for any loss or delay incurred either directly or indirectly in gaining vacant possession.

15. TERMS APPLICABLE TO MANAGEMENT SERVICES

This clause 15 only applies to Agreements for Management Services

15.1. **Point of Contact.** We will act as the point of contact for any queries raised by you and the tenant in relation to the tenancy.

15.2. **Regular Maintenance Works / Repairs**. We will arrange for and manage any required or instructed maintenance works or repairs up to the value of £360 incl VAT for any single item without further reference to you. If repairs or regular maintenance works are likely to exceed £360 incl VAT, we will (except in situations we consider an emergency), endeavour to contact you to obtain your authorisation to incur that expense. If we do not receive contrary instructions from you, in writing within 7 days, you will be deemed to provide your consent. We will also request payment in advance

where works exceed the value of rent less charges as we are unable to overdraw against your account. We will maintain a float of £360 on your rental account where rent is paid by more than two months in advance. This float will increase to £720 where the rent is paid bi-annually or annually. You agree to top up the float if required.

15.3. **What if the maintenance cost is likely to exceed the pre-agreed value**. Where required, if maintenance works or repairs are likely to cost more than the value outlined in clause 15.2 above, we will only arrange for and manage such works if:

15.3.1. you consent to such works being carried out; and

15.3.2. we hold sufficient funds on your rental account in respect of the property concerned to cover the estimated costs of such works (if insufficient funds are available, you will be requested to provide us with any necessary funds).

15.3.3. we are not liable for any loss or damage suffered by you or to the property as a result of any delay or failure to carry out works caused by your failing to grant consent pursuant to clause 15.3.1 above or failing to place us in funds subsequent to a request for funds pursuant to clause 15.3.2 above.

15.4. **Where Works / Repairs are needed to fulfill your obligations under Section 11 of the Landlord and Tenant Act.** Notwithstanding clause 15.3 where:

15.4.1. works of an emergency nature are, at our absolute discretion, required to protect your interests and/ or ensure compliance with any relevant statutory obligations;

15.4.2. the cost of such works is anticipated to be in excess of the value agreed in the confirmation of instruction; and

15.4.3. where we have been or are unable to obtain your consent to such works, we may at our absolute discretion arrange for such works to be carried out and recover the cost of such works from you or the tenant may be permitted (outside of normal office hours) to organise emergency work should they be required. The tenant is permitted only, to carry out works on the emergency issue and no other work is permitted without your consent.

15.5. **Who will conduct maintenance works / repairs.** We will at our absolute discretion identify and instruct appropriate contractors to carry out any necessary or instructed works unless you request in writing that a specific contractor be instructed. In such circumstances we will instruct the contractors identified by you subject to:

15.5.1. provision of copies of the contractor's professional qualification (where appropriate) and details of the contractor's public liability insurance; and

15.5.2. the contractor being willing and able to carry out the relevant work within any required timescale.

15.6. Should you require us to wait at a property for a contractor whom you have specifically requested be instructed, pursuant to a written request by you, we will charge the charge stated at clause 5.3.12 above.

15.7. **What you need to tell us about the property.** You are solely responsible for informing us and the tenant of the existence of and any relevant details of any service Agreements or warranties taken out for the property. We will not be liable for any losses suffered by you arising from any failure to inform us of the existence of and any relevant details of any service Agreements or warranties.

15.8. **Instruction of contractors and the commission we receive.** Where one of our approved contractors is instructed to carry out works on your behalf, we will receive a marketing commission from the contractor. This amounts to 12% (incl VAT) of the value of the works instructed. This fee is paid by the contractor to us in recognition of the saving made by them in marketing costs.

15.9. **Limited Scope Property Visits.** We will carry out two property visits per year for each tenancy that has been arranged, these will be charged at £72 incl VAT per visit. Should you require further visits

to be undertaken, we will carry out such visits where expressly instructed to do so, with any further visits being subject to the charge shown at clause 5.3.11above. Property visits are a walk through to identify any obvious defects or necessary repairs and are not a structural survey of the property. We cannot and do not accept responsibility for hidden or latent defects.

15.10. **Breach of Tenancy**. We will inform you if we become aware of a breach of the tenancy agreement by the tenant. Should it become necessary to take legal action or seek legal advice in respect of such breach and you wish to instruct solicitors, you will be responsible for instructing solicitors (and bearing any costs incurred). You authorise us to supply any information or copies of documentation held by us, and requested by such solicitors, to any solicitors instructed by you.

15.11. **Furnishing / Refurbishment works**. Where you instruct us to undertake partial or total furnishing/ refurbishment of the property, we will apply the charge shown at clause 5.3.13 above.

15.12. **Keys**. We require a set of management keys to allow us to effectively manage the property and each tenant also requires one set of keys. The set of keys should include keys to windows, patio doors, lofts, communal areas, garages. Where a management set or the full number of tenant's keys required are not provided by you, we reserve the right to cut additional sets at your expense (the relevant charge being shown at clause 5.3.14 above).

15.13. If keys are lost or unaccounted for by you or the tenant, we will not be liable and you will be responsible for, and for the cost of, obtaining replacement keys. If you ask us to arrange the cutting of replacement keys, you agree to pay the relevant charge shown at clause 5.3.14 above.

16. TERMS APPLICABLE TO SHORT LETS

If we are instructed to provide a Short Let service

16.1. You will be responsible for the payment of all utility bills including gas, electricity, water and council tax, excluding any telecommunication services, for the duration of the tenancy. The tenant will be responsible for paying for any telecommunications services at the property for the duration of the tenancy.

16.2. Should the tenancy continue for a period longer than 6 months we will conduct a property visit for the tenancy. Property visits are subject to the conditions outlined in clause 15.9.

16.3. Should the tenant not vacate the property at the end of their tenancy, you acknowledge that a Section 21 notice of the Housing Act 1988 needs to be served on the Tenant, providing at least two months' notice to terminate the tenancy. The tenancy cannot be terminated any earlier than six months after the tenants have been in situ. You understand that this means there may be a period of time where the tenant cannot be evicted from the property and where rent is not paid.

16.4. We conduct reference checks for short lets.

17. REFERENCES

17.1. KW Move reserves the right to use a credit referencing company to obtain references on potential Tenant's and Guarantors. Your reliance on the reference report is entirely at your own risk. References are only accurate on the day they are taken, and KW Move accepts no liability for changes in the tenants circumstances (affecting their profile including credit rating) after the date in which the necessary checks are carried out. You are entitled to view this reference report upon request.

You acknowledge that these checks are restricted in scope and KW Move cannot guarantee the accuracy or completeness of any reference checks, nor will we be liable for any losses suffered resulting from the non-disclosure of facts by the referencing agency or the potential tenant.

17.2. If a potential tenant passes the referencing procedure we will prepare and execute the tenancy agreement on your behalf. If a potential tenant does not pass the referencing procedure or the results of the referencing procedure include advice that advance payment of rent or a guarantor should be sought, we will obtain written confirmation from you, that you wish to proceed with the tenancy.

18. YOUR LEGAL OBLIGATIONS

18.1. Consent to Let

18.1.1. If you are a leaseholder. You confirm that permission is granted under the head lease to let the property and that any relevant sections of the head lease will be provided to us prior to the commencement of the tenancy, to attach to the tenancy agreement if applicable; and that the period of the intended letting expires before the expiry of your head lease.

18.1.2. If the property is mortgaged. You confirm that permission has been sought where required from the mortgage lender or charge holder before letting the property.

18.1.3. You are required to have building and contents insurance. You confirm that you have building and contents insurance cover for the property including third party liability; that copies of the relevant sections of the policies will be provided to the tenant at the start of the tenancy; and that the insurer has been informed of the letting of the property

18.2. **Maintenance of the Property**- Landlord and Tenant Act 1985 Section 11

18.2.1. Your responsibility to keep the property in good repair. You confirm that we have made you aware of your statutory responsibility to keep the property in repair including the exterior, drains gutters and pipes; to repair the sanitary appliances; to repair the installations for supply of space and water heating and to repair the installations for the supply of gas, electricity, and water.

18.3. Providing Information- Landlord and Tenant Act 1987

18.3.1. Our obligation to provide information to Tenants. We are obliged to provide your full name and actual address on all rent demands. If you reside outside England and Wales then we must provide the tenant with an alternative address to which notices may be served within the jurisdiction of England and Wales. Where a Full Management service has been chosen, we will use our office address for such purposes.

18.4. Local Authority Licensing Schemes

18.4.1. You are responsible for ensuring compliance with all local authority licensing schemes for rental properties, including schemes relating to Houses in Multiple Occupation and housing quality regulations under the Housing Act 2004.

18.4.2. You agree to reimburse us for any liability, cost or expense incurred by us as a result of you failing to obtain, or comply with, the licensing requirements.

18.5. Mail

18.5.1. It is your responsibility to re-direct your mail prior to the commencement of a tenancy. We have no liability for lost documents if the mail has not been redirected.

YOUR SAFETY OBLIGATIONS

19.1. The Gas Safety (Installation & Use) Regulations 1998 and The Gas Safety (Installation and use) Regulations 2018 (“the Gas Regulations”)

19.1.1. Under the Gas Regulations, it is your responsibility to ensure that all gas appliances and the fixed installations are maintained in good order, checked for safety at least every 12 months by a Gas Safe registered engineer, that a certificate confirming such checks have been carried out and that the original of such certificate is supplied to the tenant at the commencement of the tenancy and within 28 days of the date of renewal of a certificate.

19.1.2. If you instruct us to provide a Rent Collection service:

19.1.2.1.You must provide the original certificate to us prior to the commencement of the tenancy. If you do not provide the original certificate to us prior to the commencement of the tenancy, we reserve the right to appoint a Gas Safe registered engineer to inspect all gas appliances and their installation, carry out any remedial works where necessary and provide a certificate. The charge for this, as set out in clause 5.3.18, will be payable by you, and will be debited from your rental account.

19.1.2.2. If the tenant is remaining in occupation beyond the expiry of the original certificate you are responsible for obtaining a replacement valid certificate and supplying the original of the same to the tenant and to us. If you have not provided a valid certificate to us and the tenant within 14 days of the expiry of the original certificate we will arrange for the certificate to be carried out at your expense.

19.1.3. If you instruct us to provide the Management service:

19.1.3.1.You must provide the original certificate to us prior to the commencement of the tenancy. If you do not provide the original certificate to us prior to the commencement of the tenancy, we reserve the right to appoint a Gas Safe registered engineer to inspect all gas appliances and their installation, carry out any remedial works where necessary and provide a certificate. The charge for this will be payable by you, and will be debited from your rental account.

19.1.3.2. If the tenant is remaining in occupation beyond the expiry of the original certificate and, 6 weeks prior to the expiry of the original certificate, you have not confirmed to us that you will instruct your own Gas Safe registered engineer, we will instruct a Gas Safe registered engineer to inspect all gas appliances and their installation, carry out any remedial works where necessary and provide a new certificate.

19.1.3.3. If the tenant is remaining in occupation beyond the expiry of the original certificate and you have indicated that you will instruct your own Gas Safe registered engineer, you will provide us with the original of a new certificate no later than 14 days prior to the expiry of the original certificate. If you do not provide the original new certificate to us no later than 14 days prior to the expiry of the original certificate, we reserve the right to appoint a Gas Safe registered engineer to inspect all gas appliances and their installations, carry out any remedial works where necessary and provide a new certificate. The charge for this, will be payable by you, and will be debited from your rental account.

19.1.4. You acknowledge that you are solely responsible for compliance with the Gas Regulations and agree to compensate us for any liability, cost or expense incurred under the Gas Regulations.

19.2. **Furniture and Furnishings**

19.2.1. You confirm that any furniture and soft furnishings supplied for a tenancy at the property comply with the requirements of the Furniture & Furnishings (Fire) (Safety) Regulations 1988 as amended.

19.2.2. You agree to reimburse us for any liability, cost or expense incurred under the above Regulations.

19.3. **Smoke and Carbon Monoxide Alarms**

19.3.1. All newly built premises from June 1992 and/or a House in Multiple Occupation (HMO) must have mains-fitted smoke alarms with battery back-up. It is your responsibility to make sure these alarms are in working order.

19.3.2. All properties require smoke alarms to be fitted. You confirm that each storey of the property on which there is at least one room used either wholly or partly as accommodation has a working smoke alarm, or will have one installed prior to the commencement of an initial tenancy. If an inventory and schedule of condition is not organised through a clerk booked by us, you confirm that you will be responsible for arranging that any alarms are tested and working.

19.3.3. You confirm that any room which contains a solid fuel burning combustion appliance has a working carbon monoxide alarm, or will have one installed prior to the commencement of an initial tenancy.

19.3.4. You confirm that all required alarms will be tested to ensure that they are working on the day of the commencement of the tenancy. Should there be a fault with any alarm; you confirm that you will take the required action to remedy the fault.

19.4. **Electrical installations**

19.4.1. You confirm that all electrical equipment provided at the property is fully operational, is safe and has written instructions for use provided, to comply with the relevant legislation.

19.4.2. It is a legal requirement that a qualified electrician is instructed to carry out a full Electrical Safety Check and PAT (Portable Appliance Test) prior to the commencement of the tenancy and periodically thereafter. You agree to provide us with a copy of the report before the tenant commences the tenancy.

19.4.3. You agree to reimburse us for any liability, cost or expense incurred under the Electrical Equipment (Safety) Regulations 2016 in relation to the property.

19.5. **Energy Performance Certificate (EPC)**

19.5.1. You confirm that an EPC will be provided prior to marketing the property and that the responsibility of obtaining the EPC remains with you.

19.6. **Appliance Manuals**

19.6.1. You confirm that, where available, copies of instruction manuals for all gas, electrical and other appliances present at the property will be provided to the tenant.

19.7. **Health & Safety**

19.7.1. You are responsible for ensuring that the property complies fully with all relevant health and safety requirements and, in particular, for ensuring that no instances of legionella bacteria are present in the property. We recommend that you carry out a thorough health and safety risk assessment before renting out the property. We cannot accept responsibility for any losses resulting from your failure to conduct a thorough health and safety risk assessment prior to the grant of a tenancy.

19.8. **Legionnaires' Disease**

19.8.1. You are responsible for carrying out a legionnaires risk assessment of the property prior to the property being let. Accordingly, you agree to carry out this risk assessment prior to the commencement of the tenancy and to provide a copy of such assessment to us.

19.9. **Internal Blinds**

19.9.1. There are requirements under European Regulations that the installation for raising and lowering blinds and the movement of curtains across windows of the property comply with certain safety features (designed to prevent blind cords or chains creating a hazardous loop). You will ensure

the property's blinds and curtains comply with these safety requirements. You agree to reimburse us for any liability which results from your failure to satisfy these safety requirements.

20. OTHER IMPORTANT TERMS

20.1. Terms of Business

20.1.1. After this Agreement takes effect, each of the parties shall, at the request of the other, do and execute or procure to be done and executed all such acts, deeds, documents and things as may be necessary to give effect to this Agreement.

20.1.2. Should we be obliged to take legal proceedings to recover from you outstanding monies, you agree to meet our legal expenses reasonably incurred in taking such action.

20.2. Data Protection Act 2018 and the General Data Protection Regulation 2016/679 ("GDPR")

20.2.1. How we will use personal information. You agree that we may use the personal information that you, and any tenant or occupier, provide to us as follows:

20.2.1.1. where you and/or tenant or occupier (as applicable) agree to the intended use;

20.2.1.2. to process your payments for the service(s);

20.2.1.3. to supply the service(s), and enforce our rights under the Agreement; and

20.2.1.4. to further refine and develop or target our services for you or other actual or potential customers. Full details of how we use your personal data are shown in our Privacy Policy which is available on our website.

20.2.2. We will only give personal information about you, and the tenant or occupier to third parties

(a) Where necessary in order to fulfil our rights or obligations under this Agreement; (b) where the law either requires or allows us to do so, or (c) where this will assist us in developing our offering for you and other potential customers as described at clause 20.2.1.

20.2.3. We would like to contact you with information on connected products and services offered by us. If you do not want us to use your personal data to contact you about connected products or services please let us know.

20.2.4. Landlord obligations under GDPR. You are a landlord who has access to tenant data and therefore qualify as a Data Controller under the GDPR. We recommend that you refer to the Information Commissioners Office (ICO) for further information

20.2.5. Retention of personal information. We will hold your personal information, and that of any tenant or occupier for a period of six years after the end of a tenancy agreement in line with the requirements set out in The Property Ombudsman Code of Practice for Residential Lettings Agents.

20.2.6. If you have any questions about the handling or protection of your personal data. If you would prefer us not to use your information in this way or have any questions about the handling or protection of your Personal Data or your rights under this Agreement, please contact us.

20.3. **Insurance**

20.3.1. Legal Expenses and Rent Protection

20.3.1.1. You acknowledge that this service has been offered and explained to you and you understand that if you purchase Rent and Legal Protection you will be noted as an interested party in KW Move's insurance policy.

20.3.1.2. If you have chosen not to purchase Rent and Legal Protection you acknowledge that you have been made aware that if the tenant defaults during the tenancy, then you will be liable for all the legal fees, costs and expenses for gaining possession and the recovery of any rent arrears and that there will be no rent cover to assist the payment of any mortgage and any other property outgoings.

20.3.1.3. If you are interested in covering your legal expenses and/or rent arrears, please let us know, as we may still be able to offer our Rent and Legal Protection Service. This service is not included in the service(s), and is subject to its own terms and conditions.

20.3.2. Landlord Asset Protection

20.3.2.1. If instructed, this additional service can provide administration and project management of insurance claims where an insurable incident has occurred. The service includes handling of the claim including the services of the appointed outsourced claims handler and insurance repair specialist contractors to return the property to a pre-loss condition. Please let us know if you would like further details about this additional service and the related charges.

20.3.2.2. If not instructed to provide you with an asset protection service, we will not act as your agent in relation to the management of insurance claims. However, we will assist in the process by providing relevant quotes or other information to support the claim.

20.4. Our responsibility for loss or damage suffered by you

20.4.1. We are responsible to you for foreseeable loss and damage caused by us. If we fail to comply with these terms, we are responsible for loss or damage you suffer that is a foreseeable result of our breaking this Agreement or our failing to use reasonable care and skill, but we are not responsible for any loss or damage that is not foreseeable. Loss or damage is foreseeable if either it is obvious that it will happen or if, at the time the Agreement was made, both we and you knew it might happen, for example, if you discussed it with us during our pre-Agreement discussions.

20.4.2. We do not exclude or limit in any way our liability to you where it would be unlawful to do so. This includes liability for death or personal injury caused by our negligence or the negligence of our employees, our agents or subcontractors; for fraud or fraudulent misrepresentation; for breach of your legal rights in relation to the service including the right to have services supplied with reasonable skill and care.

20.4.3. We will not be liable for non-payment of rent or any action of the tenant, including (but not limited to) any failure by the tenant to deliver up possession of the property.

20.4.4. We are not liable for the care of or any damage suffered to the property when it is untenanted or for matters not noted during an inspection carried out by us

20.4.5. We are not liable for any damage caused by the tenant to the property or fixtures or fittings, whether such damage is accidental or intentional.

20.5. When we are liable for damage to your property. We will make good any damage to your property caused by us in providing the Service(s). However, we are not responsible for the cost of repairing any pre-existing faults or damage to your property that we discover.

20.6. We may transfer this agreement to someone else. We may transfer our rights and obligations under the Agreement to another organisation. We will always tell you in writing if this happens and we will seek to ensure that the transfer will not affect your rights under the Agreement

20.7. You need our consent to transfer your rights to someone else. You may only transfer your rights or your obligations under these terms to another person if we agree to this in writing.

20.8. Nobody else has any rights under this Agreement. This Agreement is between you and us. No other person shall have any rights to enforce any of its terms.

20.9. If a court finds part of this Agreement illegal, the rest will continue in force. Each of the clauses, and each of the sub-clauses, of these terms operates separately. If any court or relevant authority decides that any of them are unlawful, the relevant clause or sub-clause shall be deemed deleted. However, the remaining clauses will remain in full force and effect.

20.10. Even if we delay in enforcing this Agreement, we can still enforce it later. If we do not insist immediately that you do anything you are required to do under these terms, or if we delay in taking steps against you in respect of your breaking this Agreement, that will not mean that you do not have to do those things and it will not prevent us taking steps against you later. For example, if you miss a payment and we do not chase you but we continue to provide the service(s), we can still require you to make the payment at a later date.

20.11. Which laws apply to this Agreement and where you may bring legal proceedings. These terms are governed by English law and you can bring legal proceedings in respect of the service(s) in the English courts. These terms and the provision of the service are governed by English law and are subject to the exclusive jurisdiction of the courts of England and Wales.

20.12. Service of Legal Notices

20.12.1. Any legal proceedings to be served in respect of this Agreement which are to be served outside the jurisdiction shall be deemed to be sufficiently served if they are sent by ordinary first-class or airmail post or its equivalent and it is agreed that all legal proceedings may be served in English without the necessity for translation into any other language.

20.12.2. Any notice given under this Agreement shall be in writing and signed by or on behalf of the party giving it and shall be served by delivering it personally, by registered post or by first-class post to the relevant party at and (in the case of the Landlord) at the contact address specified in the confirmation of marketing. Any such notice shall be deemed to have been received:

20.12.2.1. if delivered personally, at the time of delivery;

20.12.2.2. in the case of registered or first-class post, 48 hours from the date of posting.

20.13. Professional Memberships

20.13.1. KW Move is a member of The Property Redress Scheme. We are also members of ARLA Propertymark and have Client Money Protection (CMP) with them.

21. IF THERE IS A PROBLEM WITH THE SERVICE

21.1. How to tell us about problems. If you have any questions or complaints about the Service(s), please contact us in writing by email.

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